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No. 4 - Catherine Metzger, et al. v. Cal-Cleve, Limited, et al.

Defendant Briaunnie Leneise Davis Preston's Motion to Stay Action on the Ground of Inconvenient Forum

Defendant Briaunnie Leneise Davis Preston ("Preston") moves to stay Plaintiffs' complaint under the doctrine of forum non conveniens. Defendants Cal-Cleve Limited, Dot-Line Transportation, Inc., and Travis Benjamin Gatlin filed a joinder to the motion. The Court published a tentative ruling, heard argument from counsel, and took the matter under submission. The Court, having reviewed again the parties' brief and legal authorities, issues this final ruling on the motion

Code of Civil Procedure section 410.30(a) provides, "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." "Forum non conveniens is an equitable doctrine invoking the discretionary power of a court to decline to exercise the jurisdiction it has over a transitory cause of action when it believes that the action may be more appropriately and justly tried elsewhere." (Stangvik v. Shiley Inc. (1991) 54 Cal.3d 744, 751 (Stangvik).)

Courts use a two-step process in applying forum non conveniens. "[A] court must first determine whether the alternate forum is a 'suitable' place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California." (Stangvik, supra, 54 Cal.3d at p. 751.) "The moving defendant has the burden of proof on a motion for forum non conveniens." (David v. Medtronic, Inc. (2015) 237 Cal.App.4th 734, 743 (David).) When Plaintiffs are nonresidents, their choice of forum is not afforded a "strong presumption" of appropriateness, but "due deference." (See National Football League v. Fireman's Fund Ins. Co. (2013) 216 Cal.App.4th 902, 929.)

Background

The current Defendants in this action are (1) Cal-Cleve, Limited; (2) Dot-Line Transportation, Inc.; (3) Travis Benjamin Gatlin; and (4) Briaunnie Leneise Davis Preston.

Plaintiffs, who are residents of South Carolina, filed this action in California on October 20, 2025. Defendants Cal-Cleve and Dot-Line provide the bases for jurisdiction in California: Cal-Cleve is incorporated in California and Dot-Line has its principal place of business here.

The Court previously denied Defendants Cal-Cleve Limited and Dot-Line Transportation, Inc.'s motion to stay based on forum non conveniens for failure to establish that Arizona, the proposed alternate forum, was a suitable place for trial. There,

Cal-Cleve and Dot-Line provided no evidence that the other Defendants in the case were subject to jurisdiction in Arizona or otherwise consented to jurisdiction there. Now, there is evidence that all Defendants consent to jurisdiction in Arizona. (See Preston Decl., ¶ 3; Watson Decl., ¶ 12; Gatlin Decl., ¶ 6.) Therefore, the Court will continue its analysis to determine whether this case should be stayed to allow the parties to proceed in Arizona.

Forum Non Conveniens

A. Suitable Forum

Suitability of an alternative forum “is a nondiscretionary determination by the trial court.” (Shiley Inc. v. Superior Court (1992) 4 Cal.App.4th 126, 131.) The issue is “determined by a two-prong test: There must be jurisdiction over the defendant and the assurance that the action will not be barred by a statute of limitations.” (Id. at pp. 132-133.)

As mentioned above, all Defendants now consent to jurisdiction in Arizona. As for the statute of limitations, Preston proposes that all remaining defendants agree not to assert any statute-of-limitations defense that was unavailable when this action was first filed in this Court. This condition is put forth in Preston's proposed order, which states “Each defendant—Cal-Cleve, Limited; Dot-Line Transportation, Inc.; Travis Benjamin Gatlin; and Briaunnie Leneise Davis Preston—shall submit to personal jurisdiction in the Arizona Action and, provided Plaintiffs timely commence that action, shall not assert any statute-of-limitations defense that was unavailable on October 20, 2025 and that arises solely from the passage of time after that date or from the pendency of this action in California.” (Proposed Order, ¶ 4.) Cal-Cleve, Dot-Line, and Gatlin filed a joinder to the motion, which demonstrates they are amenable to this agreement. Code of Civil Procedure section 410.30(a) authorizes a stay “on any conditions that may be just.” With this proposed condition in place, Arizona is a suitable forum.

Plaintiffs argue that Arizona is not a suitable forum, stating they “have no remedy because they are barred by statute from suing for the wrongful death of their brother, and their damages cannot be pursued by the estate.” (Opp., at p. 4.) The Court disagrees. The very statute Plaintiffs cite provides a basis for wrongful death claims brought by a representative of the estate: “An action for wrongful death shall be brought by and in the name of the surviving husband or wife, child, parent or guardian, or personal representative of the deceased person for and on behalf of the surviving husband or wife, children or parents, or if none of these survive, on behalf of the decedent's estate.” (A.R.S. 12-612(A).) Here, Plaintiffs, as Decedent's sisters, represent they are his only surviving relatives. They are also successors in interest and personal representatives of the estate. Therefore, they can still recover damages on behalf of the estate in Arizona.

To the extent Plaintiffs argue that they have no standing to personally recover damages in the wrongful death action, the Court does not view this as limiting Plaintiffs' remedy so much that Arizona would become an unsuitable forum. Under the doctrine of forum non conveniens, “a showing that recovery would be more difficult or even impossible in a foreign forum does not demonstrate that the alternative forum is inadequate.” (Shiley, supra, 4 Cal.App.4th at p. 133.) “The law does not require that California courts become the depository for nonresident plaintiffs' cases involving causes of action which are not recognized or would not be successful in” the alternative forum. (Id. at p. 134.) The “no remedy at all” exception “applies only in rare circumstances, such as where the alternative forum is a foreign country whose courts are ruled by a dictatorship, so that there is no independent judiciary or due process of law.” (Id. at pp. 133-134, internal quotes and citation omitted.)

Here, Plaintiffs still have a remedy in Arizona—the “no remedy at all” exception does not apply. The Court also rejects Plaintiffs' argument that the unavailability of California's more favorable relation back doctrine will provide them “no remedy at all.” Though Arizona has a different procedural framework for adding unknown Doe defendants, this does not render Arizona an unsuitable forum.

B. Private and Public Interests

The Court has to consider the private and public interest factors weighing in favor of a stay on the grounds of inconvenient forum.

“The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” (Stangvik, *supra*, 54 Cal.3d at p. 751.)

1. Private Interests

Here, private interest factors weigh in favor of staying this action. Preston represents that most evidence and witnesses to the fatal motor-vehicle accident are in Arizona. This includes the collision scene itself, criminal investigation records, scene documentation, commercial-vehicle inspection records, and autopsy records. In addition, important witnesses largely reside in Arizona, including eyewitnesses, Arizona Department of Public Safety and Department of Transportation personnel, medical examiner personnel, and commercial-enforcement troopers who performed the inspection of the commercial vehicle. Preston contends that this Court's ability to compel these nonresident witnesses to attend trial is limited, while Arizona has a compulsory process over these residents and custodians.

Defendant's arguments are well-taken. The gravamen of this suit is in Arizona—the crash occurred in Arizona, was subsequently investigated there, and the majority of witnesses and evidence are located there.

In opposition, Plaintiffs argue that the key disputed issues in this case center on Cal-Cleve and Dot-Line's improper conduct and punitive damages, and the evidence supporting these claims is in California. Specifically, Plaintiffs point to Gatlin and Preston's employment records, the tractor itself, the expert accident reconstructionist, and other employees of Cal-Cleve, as all located in California.

While the Court understands that some corporate evidence potentially probative to punitive damages is in California, this case is ultimately a wrongful death and survival action resulting from a fatal collision occurring in Arizona. The majority of evidence and witnesses are located there. Further, records and testimony from the defendants in California would be equally available through routine written discovery processes and depositions whether the case was pursued in California or Arizona.

Plaintiff's counsel recounted at the hearing that a fair amount of discovery has already been conducted of Arizona witnesses and documents maintained by Arizona agencies. Those materials, and the time expended to collect that information, should be equally applicable in Arizona, without the need for the parties to re-depose witnesses or re-serve written discovery.

2. Public Interests

Public interests also weigh in favor of staying the action. Arizona has a substantial interest in protecting motorists driving on its roadways. In addition, Arizona's agencies and other Arizona-based personnel have already been heavily involved in this collision and its consequences—it has required Arizona-based agencies and resources to investigate the scene, inspect the trailer involved in the collision, and provide medical assistance. Arizona's courts also convicted Gatlin for felony negligent homicide arising from the incident. Arizona has a substantial interest in this dispute.

Countervailing interests exist in California, but are not as significant. While the Court agrees with Plaintiffs that California has an interest in ensuring that corporations did not ratify any malicious conduct that enabled the car crash in another state, this connection is more attenuated. On balance, Arizona has a greater interest in adjudicating this action.

Disposition

Defendant Briaunnie Leneise Davis Preston's motion to stay action on the ground of inconvenient forum is granted on the conditions that (a) Defendants Cal-Cleve, Dot-Line, Preston, and Gatlin all waive their rights to assert a statute of limitations defense that was unavailable on October 20, 2025 and that arises solely from the passage of time after that date or from the pendency of this action in California; and (b) all discovery already conducted in the California case will be available to the parties in a subsequent Arizona case, without the need to re-depose witnesses, re-serve document requests, etc.

The Court hereby stays this action. A status conference regarding the Arizona litigation is scheduled for August 31, 2027 at 8:30 am in Department 510. The parties are to submit a joint status report at least five court days prior to August 31, 2027.

The September 10, 2026 case management conference is advanced to this date and taken off calendar.